
MEMORANDUM

TO: Mayor Patrick Collins, and City Council
FROM: TJ Barttelbort, Purchasing Manager 
DATE: August 21, 2024
SUBJECT: Professional Services Agreement between the City of Cheyenne and The Design Studio, Inc. (TDSi), for the Restoration and Remodel of the Cheyenne Pumphouse

Three (3) Proposers responded to Request for Proposal (RFP) #15-24, for the Restoration and Remodel of the Cheyenne Pumphouse, Project.

The proposals were received from:

1. The Design Studio, Inc. (TDSi)
2. Anderson Hallas Architects
3. Plan One Architects

Upon review of the proposals by the evaluation panel, the group has recommended acceptance of the proposal submitted by The Design Studio, Inc. (TDSi), for a project award amount of \$424,200.00

Basis for award was based on a Qualifications and Cost based review and scoring of proposals.

Funding: *Proposed Funding Source – General Fund Reserves*

City Contract No. _____

PROFESSIONAL SERVICES AGREEMENT
for
RESTORATION AND REMODEL OF THE CHEYENNE PUMPHOUSE

This Professional Services Agreement (“Agreement”) is made and entered into by and between the **City of Cheyenne**, located at **2101 O’Neil Avenue, Cheyenne, Wyoming 82001** (“City”), and **The Design Studio, inc. (TDSi)**, located at **1610 Pioneer Avenue, Cheyenne, Wyoming 82001** (“Consultant”). This Agreement shall become effective upon the date of the last signature affixed hereto.

RECITALS

In consideration of the mutual covenants and obligations herein expressed, it is agreed by and between the parties as follows:

1. **SCOPE OF WORK**

The Consultant agrees to provide services as described for the **Restoration and Remodel of the Cheyenne Pumphouse**, in accordance with **City of Cheyenne Request for Proposal (RFP) #15-24**, incorporated herein by reference, and the **Consultant’s submitted proposal**, incorporated herein by reference.

2. **TIME OF PERFORMANCE**

The work included in this Scope of Work will be completed as follows: Completion of Construction Documents (CD’s) **April 15, 2025**, with Schedule for Bidding/Negotiation (B/N) and Construction Administration (CA) Phases to Be Determined. The Consultant shall perform its services as expeditiously as is consistent with such professional skill and care and the orderly progress of the Project.

3. **COMPENSATION**

In consideration of the services to be performed pursuant to this Agreement, the Consultant will bill the City and the City agrees to pay Consultant **Four Hundred Twenty-Four Thousand, Two Hundred Dollars (\$424,200.00)**, as stated in **Exhibit A – Price Proposal**.

4. **CONSULTANT RESPONSIBILITY**

In providing services under this Agreement, the Consultant shall perform in a manner consistent with that degree of care and skill ordinarily exercised by members of the same profession currently practicing under similar circumstances. Upon notice to the Consultant, the Consultant will, without additional compensation, correct those services not meeting such a standard.

5. COMPLIANCE WITH LAWS

The Parties agree that they will perform their obligations as provided in this Agreement in accordance with all applicable laws and ordinances.

6. DRUG-FREE WORKPLACE

In compliance with the Drug-Free Workplace Act of November 1988, the City of Cheyenne has established an Alcohol and Controlled Substance Policy that pertains to alcohol and drug usage by City Employees. All architects, engineers, and other consultants under contract with City of Cheyenne, and their employees and sub-consultants, are required to comply with the provisions of the City's Alcohol and Controlled Substance Policy for drug and/or alcohol usage on City property or other sites occupied by the Consultant while performing the duties and responsibilities of the Agreement. It is the responsibility of the Consultant to familiarize themselves with the requirements of this policy and to inform all their employees and sub-consultants of the requirements and ensure their compliance. If the Consultant, their employees, or sub-consultants are found in violation of this policy, the Agreement may be terminated.

7. INDEMNIFICATION/HOLD HARMLESS

To the fullest extent permitted by law, Consultant shall indemnify the City of Cheyenne, its officers, directors, partners, employees, and representatives, from and against losses, damages, and judgments arising from claims by third parties, including reasonable attorneys' fees and expenses recoverable under applicable law, but only to the extent they are found to be caused by a negligent act, error, or omission of Consultant or Consultant's officers, directors, members, partners, agents, employees, or subconsultants in the performance of services under this Agreement.

8. INSURANCE REQUIREMENTS

The Consultant must provide proof of the following insurance coverages:

Commercial General Liability Insurance

For claims arising out of bodily injury, illness, or death, or from damage to or destruction of property of others, including loss or use thereof, with minimum limits of \$1,000,000 per occurrence, \$2,000,000 aggregate for the entire term of the Agreement.

Workers' Compensation

Workers' compensation coverage shall be in effect for the entire term of the Agreement, as required by Wyoming law, for all employees or agents providing services under this Agreement. Consultant shall provide the City with proof of workers' compensation or employer's liability insurance coverage.

Professional Liability Insurance

The Consultant shall provide proof of professional liability insurance or errors and omissions liability insurance in an amount not less than \$500,000 to protect the City from any and all claims arising from the Consultant's negligence in the performance of duties

under this Agreement. The City prefers that this liability insurance coverage be provided pursuant to an “occurrence” policy.

If this coverage is provided pursuant to a “claims made” policy:

- a. Consultant shall, concurrently with the execution of this Agreement, provide the City with a certificate of insurance demonstrating that such coverage is or shall be in effect at the time the Consultant begins the provision of services under this Agreement;
- b. In the event the Consultant’s services extend into a future policy period, the Consultant shall, prior to the policy expiration date, provide the City with a new certificate of insurance demonstrating that such coverage is or shall be in effect during all periods of time that Consultant will provide services under this Agreement;
- c. Consultant shall maintain said “claims made” coverage for a period of five (5) years following the last date that Consultant has provided services under this Agreement; and
- d. In the event the Consultant or the insurer terminates “claims made” coverage prior to the expiration of the periods provided in subparagraphs a., b., or c. of this paragraph, the Consultant shall provide to the City advance written notification of the termination of said coverage and shall provide the City with an endorsement for an extended reporting period (“tail coverage”) which shall be in effect for a period of time not less than five (5) years following the last date that Consultant has provided services under this Agreement.

Additional Insurance Information

The Consultant shall name the City of Cheyenne as **an Additional Insured** by endorsement on its insurance policies and shall provide the City with a copy of the endorsements. This requirement does not apply to workers’ compensation and professional liability insurance policies.

Consultant shall provide the City with certificates of insurance acknowledging the above-stated coverages prior to beginning any work under this Agreement.

It is understood and agreed that these policies are primary and not contributory. All policies required under this Agreement shall be in effect for the duration of the Agreement. It shall be an affirmative obligation upon Consultant to immediately notify in writing the city risk manager, city clerk, and city attorney of any fact, circumstance, or occurrence that has resulted in or may result in the cancellation of, or substantive change to any insurance coverage required by this Agreement, and failure to do so shall be construed to be a breach of this Agreement.

If requested by the City, the Consultant shall provide the City with copies of insurance policies and/or policy endorsements listing the City of Cheyenne as an additional insured.

The City's failure to request or review such policies, endorsements, or certificates shall not affect the City's rights or Consultant's obligation hereunder.

Any insurance company providing coverage under this Agreement shall have a minimum A. M. Best rating of A- (excellent).

9. MINORITY AND DISADVANTAGED BUSINESS ENTERPRISES 49 C.F.R. Part 26
All parties to this Agreement assure that no person will be excluded from participation in, denied the benefits of, or otherwise discriminated against, in connection with the award and performance of this Agreement on the grounds of age, race, color, disability, national origin, or sex.
10. MONTHLY REPORT
With every monthly billing, the Consultant shall provide the City Representative with a written statement of the status of the work with respect to the Scope of Work, time sheets, and work schedule. Failure to provide the required monthly report will delay processing of any payment request until the report is submitted.
11. INDEPENDENT CONSULTANT
The Consultant shall function as an independent consultant for the purposes of this Agreement. The Consultant shall assume sole responsibility for any debts or liabilities that may be incurred by the Consultant in fulfilling the terms of this Agreement. Nothing in this Agreement shall be interpreted as authorizing the Consultant or its agents or employees to act as an agent or representative of or on behalf of the City or to incur any obligation of any kind on the behalf of the City.
12. TAXES
The Consultant agrees to pay all valid taxes, excises, license fees, permit fees, bills, debts, and obligations incurred by and in connection with its operations under this Agreement.
13. DEFAULT
Each and every term and condition in this Agreement shall be deemed to be a material element of the Agreement. In the event either party should fail or refuse to perform according to the terms of this Agreement, such party may be declared in default.
14. REMEDIES
In the event a party has been declared in default, such defaulting party shall be allowed a period of fifteen (15) days within which to cure the default. In the event the default remains uncorrected, the non-defaulting party declaring default may elect to:
 - a. Terminate the Agreement and seek damages, which damages shall not exceed the contract amount; or
 - b. Treat the Agreement as continuing and require specific performance.

15. TERM AND TERMINATION

The term of this Agreement shall be from date of execution to April 15, 2025. The parties may by mutual written agreement renew or extend this Agreement.

The City may, without cause, and upon thirty days' written notice to the Consultant, terminate this Agreement in whole or in part at any time, for the City's convenience. Upon receipt of such notice, the Consultant shall:

- a. Discontinue all services affected; and
- b. Deliver to the City within five (5) days all data, drawings, specifications, reports, estimates, summaries, and such other information and materials as may have been accumulated by the Consultant in performing this Agreement, whether completed or in process.
- c. In the event of termination for convenience, the City will pay the Consultant for accepted work done and expenses incurred to the date of termination. Such acceptance shall not be unreasonably withheld.

16. ADDITIONAL REMEDIES

In the event the Consultant fails to strictly perform in accordance with this Agreement, the City may elect to correct the deficiencies and charge the Consultant. In the event of default of any of the conditions by either party which shall require the party not in default to commence legal or equitable action against the defaulting party each party shall bear its own costs and expenses, including without limitation, attorney's fees.

17. GOVERNING LAW, JURISDICTION AND VENUE

The construction, interpretation, and enforcement of this Agreement shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over any action arising out of this Agreement and over the parties, and the venue shall be the First Judicial District, Laramie County, Wyoming.

18. GOVERNMENTAL IMMUNITY

The City of Cheyenne, along with its officials and employees, does not waive its governmental immunity by entering into this Agreement, except to the extent necessary for the parties to pursue a contract action to clarify or enforce the written terms of the Agreement. Furthermore, the City specifically retains all immunities and defenses available to it as a sovereign or governmental entity pursuant to Wyo. Stat. § 1-39-101, *et seq.*, and all other relevant state and federal law. Designations of venue, choice of law, enforcement actions, and similar provisions should not be constructed as a waiver of governmental immunity. The parties agree that any ambiguity in this Agreement shall not be strictly construed, either against or for either party, except that any ambiguity as to governmental or sovereign immunity shall be construed in favor of governmental immunity.

19. MONITORING ACTIVITIES

The City shall have the right to monitor all activities related to this Agreement that are performed by the Consultant or its sub-consultants. This shall include, but not be limited

to, the right to make site inspections at any time and with reasonable notice; to bring experts and consultants on site to examine or evaluate completed work or work in progress; to examine the books, ledgers, documents, papers, and records pertinent to this Agreement; and to observe personnel in every phase of performance of the related work.

20. OWNERSHIP OF DOCUMENTS AND WORK PRODUCT

All deliverables by the Consultant, all work product of the Consultant, all notes, calculations, memoranda, or any other documentation generated by the Consultant pursuant to the scope of this Agreement, shall be the property of the City of Cheyenne and shall be provided to the City of Cheyenne immediately upon request.

21. NON-DISCRIMINATION

The Consultant shall comply with the Civil Rights Act of 1964, the Wyoming Fair Employment Practices Act (Wyo. Stat. § 27-9-105, *et seq.*), the Americans With Disabilities Act (ADA), as amended, 42 U.S.C. § 12101, *et seq.*, and the Age Discrimination Act of 1975 and any properly promulgated rules and regulations thereto, and shall not discriminate against any individual on the grounds of age, sex, creed, color, race, religion, national origin, ancestry, pregnancy or qualifying disability in connection with the performance under this Agreement.

22. FORCE MAJEURE.

The performance of the Agreement by either party shall be subject to force majeure including, but not limited to, acts of God, fire, flood, natural disaster, war or threat of war, acts or threats of terrorism, civil disorder, unauthorized strikes, governmental regulation or advisory, recognized health threats as determined by the World Health Organization, the Centers for Disease Control, or local government authority or health agencies (including, but not limited to, the health threats of COVID-19, H1N1, or similar infectious diseases), curtailment of transportation facilities, or other similar occurrence beyond the control of the parties, where any of those factors, circumstances, situations, or conditions or similar ones prevent, dissuade, or unreasonably delay the performance required by this Agreement. The Agreement may be cancelled by either party, without liability, damages, fees, or penalty, and any unused deposits or amounts paid shall be refunded, for any one or more of the above reasons, by written notice to the other party.

23. PROFESSIONAL REGISTRATION

The Consultant shall endorse, as required by law, plans and reports prepared under this Agreement, and shall affix thereto his or her seal of professional registration, showing that he or she is licensed to practice in the State of Wyoming, if necessary.

24. ENTIRETY OF AGREEMENT

This Agreement consisting of seven (7) pages, Exhibit A – Price Proposal, consisting of nine (9) pages, Request for Proposal RFP 15-24, issued via OpenGov E-Procurement Portal, Addendum One, issued June 18, 2024 5:11 PM via OpenGov E-Procurement Portal, and the Consultant's submitted proposal, consisting of twenty-two (22) pages,

contains the entire understanding of the parties. There are no other terms or conditions, written or oral, concerning or controlling this matter.

IN WITNESS WHEREOF, the Parties to this Agreement, through their duly authorized representatives, have executed this Agreement on the days and dates set out below and certify that they have read, understood, and knowingly and voluntarily agreed to the terms and conditions of this Agreement. This Agreement may be executed in multiple counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument.

City of Cheyenne

(SEAL)

By: _____
Patrick Collins, Mayor

Attest:

Kristina F. Jones, City Clerk

Date: _____

Consultant, **The Design Studio, inc. (TDSi)**

By: _____

Print Name: _____

Date: _____

FEE PROPOSAL FOR PROFESSIONAL SERVICES

RESTORATION AND REMODEL OF THE CHEYENNE PUMPHOUSE



JULY 2, 2024



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July 2, 2024

City of Cheyenne
2101 O' Neil Avenue, Room 309
Laramie, Wyoming 82070

ATTN: TJ Barttelbort
Purchasing Manager

RE: Statement of Qualifications for
RESTORATION AND REMODEL OF THE CHEYENNE PUMPHOUSE (RFP 15-24)

Dear TJ and Selection Committee Members,

TDSi is pleased to present the following fee proposal for this project:

- PROFESSIONAL SERVICES FEES**

- For this project we propose to provide the Architectural services described herein, based upon the Scope of Services required in the RFP, including consultant services listed, for the Stipulated Sum fee of:

PHASE	APPROXIMATE HOURS	ANTICIPATED SCHEDULE	PHASE FEE AMOUNT
35% Documents Phase (Schematic Design (SD) Phase)	450	7/2024 – 9/2024	\$59,880
65% Documents Phase (Design Development (DD) Phase)	630	10/2024 – 11/2024	\$83,832
100% Documents Phase (Construction Documents (CD) Phase)	1051	11/2024 – 2/2025	\$139,720
Bidding/Negotiation (BN) Phase	90	To Be Determined Based on Availability of Funding	\$11,976
Construction Administration (CA) Phase	750		\$99,800
Post Construction (PC) Phase	30		\$3,992
SUBTOTAL			\$399,200
National Register of Historic Place Nomination	188	To Be Determined	\$25,000
TOTAL			\$424,200

- NOTES:**

- The Anticipated Schedule above is approximate and is subject to further discussion with the Owner, availability of funding, etc.
- Time has been allowed for reviews by the Owner.
- The fees noted above are based on anticipated effort by the Architect and consultants.

- *Basic Services fees for this Scope of Work include normal structural, mechanical, and electrical engineering (including IT/Data) fees.*
- *The Basic Services Fee includes basic structural analysis and design for simple reinforcement of the existing structure. If detailed analysis and extensive structural design are required, the Architect will coordinate additional fee requirements with the Owner.*
- *The Basic Services Fee anticipates new domestic water service, fire suppression water service, and sanitary sewer services in the building. If replacement of mains or extensive water and/or sewer service design are required, the Architect will coordinate additional fee requirements with the Owner.*
- *Basic Services fees for this Scope of Work do not include engineering for off-site infrastructure (e.g. roads, utility main extensions, etc.).*
- *Basic Services fees for this Scope of Work include performance specification for fire suppression modifications.*

• **HOURLY RATE SCHEDULE**



The Design Studio, inc.
Architecture + Interior Design

- Principal, Architect.....\$ 200
- Associate Principal, Architect.....\$ 150
- Associate, Architect\$ 140
- Associate, Project Manager/Intern Architect\$ 130
- Intern Architect/Historic Preservation Specialist\$110

- Legal testimony will be invoiced at 2 times the above noted hourly rate;
Research and consultation as an Expert Witness, and time giving depositions
will be billed at 1.5 times the above noted hourly rate.

THEENA

E N G I N E E R I N G

- Professional Engineer\$130



- Principal, Structural Engineer\$ 210
- Structural Engineering Lead.....\$ 205
- Associate.....\$ 175
- Senior Project Engineer\$ 160
- Senior Building Envelope Specialist\$ 160

• Project Engineer	\$ 145
• Building Envelope Specialist.....	\$ 145
• Professional Engineer	\$ 130
• Engineer EIT II	\$ 115
• Engineer EIT I	\$ 105
• Senior Designer.....	\$ 135
• Designer.....	\$ 120
• Senior Construction Services Rep	\$ 140
• Technician III.....	\$ 110
• Technician II.....	\$ 100
• Technician I.....	\$ 95
• Administrative Assistant	\$ 95
• Intern.....	\$ 85



• Principal, Mechanical Engineer.....	\$125
• Mechanical Engineer PE II.....	\$105
• Mechanical Engineer PE I.....	\$95
• Senior Mechanical Designer	\$100
• Mechanical Engineer EIT.....	\$85
• Mechanical Designer	\$70



• Principal, Electrical Engineer	\$125
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- Hourly Rates are subject to review and change on a periodic basis, or as circumstances require.

- **REIMBURSABLE EXPENSES**

- Typical expenses for items noted in the RFQ are included in the Basic Services Fee.
- Expenses incurred in connection with the project will be billed at actual cost plus a 10% markup.
- Examples of such expenses are:
 - out of town travel and subsistence expenses;
 - reproduction costs for documents for other than the Architect's use or record;
 - postage and shipping charges.
- Hourly Rates and Reimbursable Expenses Rates are subject to review and change on a periodic basis, or as circumstances require.

- **SCOPE OF SERVICES**

- The general description of the Scope of Services for this project is as follows:
- Preparation of National Register of Historic Place Nomination
- Planning and Zoning submittals will include:
 - Site Plan Review:
 - One submittal and two revised submittals.
 - Will include:
 - Preliminary grading design of the site.
 - Preliminary Drainage Design and Report.
 - Traffic Impact Study Worksheet.
 - Engineering Plan Review
 - One submittal and two revised submittals.
 - Will include:
 - Site layout plans, grading plans, detention pond plans, pavement plans and detail sheets as necessary.
 - Final Drainage Report.
 - Final Traffic Study.
- Surveying:
 - A topographic survey is included with this proposal.
- Civil Design:
 - Design will include Site Plan/Planimetric Plan, Demolition Plan, Paving and Grading Plan, Drainage Plan , Wet Utility Plan (water & sanitary sewer connections), Construction Detail sheet(s). Plans will be submitted to City of Cheyenne for Engineering Plan Review (EPR). Does not include sewer main improvements beyond the project site area. If BOPU determines that there are capacity issues in the sanitary sewer main, additional engineering fees will be negotiated with the Owner.
 - As-Built Grading Certification: Engineering Services for preparation of required Record Drawings (as-builts) of drainage improvements is included. This task will require an as-built survey of the detention pond and certification of the drainage improvements in order to obtain a Certificate of Occupancy for the building. The as-built survey is included.
- Drainage Study:
 - Preliminary Drainage Design and Report, including detention pond sizing and overlot grading to direct as much flow as possible to two proposed detention ponds, with 1' contours will be provided for inclusion in the first City Site Plan Review submittal.
 - Following receipt of comments from the first City Site Plan Review submittal, a Final Drainage Report including construction plans for drainage utility improvements will be prepared. The Final Drainage Report will be submitted with the Civil Engineering Construction Plans with the second City Site Plan Review submittal.

- Traffic Study:
 - Traffic Worksheet / Traffic Study will be submitted with the City Site Plan.
 - Structural System:
 - Martin Martin of Wyoming, Structural Engineers will provide engineering and design for structural system modification and reinforcement for the existing structure.
 - HVAC:
 - HVAC system design for the building is likely to be single zone equipment such as split-system gas-fired furnaces or ground mounted rooftop units. Based on the building size, we do not envision a more sophisticated system such as a variable air volume (VAV) system with hot water boilers.
 - Plumbing:
 - Plumbing design for the water, waste, vent, and natural gas piping.
 - Fire Sprinkler System:
 - Fire sprinkler system will be by performance specifications. Design will be the responsibility of the successful bidding fire protection contractor via deferred submittal.
 - Electrical:
 - Drawings will include site photometric plan, electrical one line, load calculations and electrical requirements needed for the City of Cheyenne review and electrical construction.
 - Drawings will show all electrical panels and meter locations as well as fire alarm, TV, AV and data devices. The plans will require the electrical contractor to wire with circuit paths at his discretion with direction as provided on the plans.
 - Acoustical Design
 - Interior Acoustic Design – Not Included
 - Sound Isolation Design – Not Included
 - Mechanical Noise & Vibration Control – Not Included Design
 - Tenant Finish / Buildout Design :Included
- **ADDITIONAL SERVICES**
 - Additional Services will be invoiced at the Architect's Hourly Rates current at the time the services are provided.
 - Additional Services by Consultant will be invoiced at the Consultant's Hourly Rates current at the time the services are provided plus Ten Percent (10%) markup.
 - Reimbursable Expenses will be invoiced at cost plus Ten Percent (10%) markup.

- **PRODUCTS OF SERVICE**

- In general, the anticipated Products of Service include the following:
 - At Completion of 35% Documents Phase (Schematic Design Phase):
 - Drawings
 - Technical Specifications
 - At Completion of 65% Documents Phase (Design Development Phase):
 - Drawings
 - Technical Specifications
 - Conceptual Renderings
 - Preliminary Order of Magnitude Estimate of Probable Construction Cost
 - At Completion of 100% Documents Phase (Construction Documents Phase):
 - Drawings
 - Technical Specifications
 - Renderings
 - Final Order of Magnitude Estimate of Probable Construction Cost
 - Bidding / Negotiation Phase:
 - Addenda, as necessary
 - Construction Administration Phase:
 - Architect's Field Reports
 - Post Construction (Warranty Period) Phase:
 - Record Drawings
 - 11th Month Inspection Report

- **SERVICES NOT INCLUDED**

- The Architect's fees **do not** include the following:
 - Environmental Investigations (Phase I or Phase II)
 - Geotechnical Investigations
 - Acoustical Design
 - Interior Acoustic Design
 - Sound Isolation Design
 - Mechanical Noise & Vibration Control
 - Testing or Abatement Design for Hazardous Materials
 - Consultant other than those specifically listed above
 - Special Consultants
 - Furniture Fixtures & Equipment Design or Documents
 - Preparation of documents for Approvals required by Governmental Agencies, except as noted above.
 - Manual Distribution of Bid Documents
 - Building Permit Fees
 - Printing, except as specifically noted herein
 - Construction Testing Fees
 - Specialty Inspections
 - Modifications to the documents or repair detailing that are the result of contractor quality control deficiencies

- Models
- Post Construction Services, except as noted herein
- Presentation or Meetings with Government Officials, Financial Institutions, etc. except as noted herein
- Ground source heat pump system design including loop field design.
- Fire sprinkler design
- Energy modeling
- Life cycle cost analysis of multiple mechanical systems
- LEED Documentation
- Detailed Quantity Take-off Construction cost estimates
- Commissioning of the mechanical, electrical or other building systems
- Ground Vibration Testing and Recommendations
- Testing and analysis of ground borne environmental vibrations
- Exterior Sound Isolation Design
- Detailed Analysis of Environmental Noise (CADNA Model)
- Security Design
- Travel outside Cheyenne, Wyoming
- Professional Liability Coverage beyond limits noted below
- The services noted above may be requested by the Owner as Additional Services.

- **INSURANCE**

- Professional Liability Insurance:
 - TDSi currently carries a Professional Liability insurance policy provided by CNA through Victor Insurance Managers Inc. / Continental Casualty Company. The policy is a “claims-made” policy with a maximum limit of liability of \$1,000,000 per claim, with an aggregate limit of \$2,000,000 per year. Our firm has never had a claim against our policy. A Certificate of Insurance will be provided upon written request.
- General Business Liability Insurance:
 - TDSi carries a General Business Liability policy provided by AMCO Insurance Company and Allied Insurance Company of America. A Certificate of Insurance that enumerates the various coverage limits will be provided upon written request.

TERM OF PROPOSAL

- This proposal will be valid for 120 days from original issuance.

Submitted By:



Randy Byers, AIA, LEED AP BD+C
Principal, Architect
for the firm